

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF USTINOV AND OTHERS v. RUSSIA

(Applications nos. 51373/21 and 35 others –
see appended list)

JUDGMENT

STRASBOURG

1 February 2024

This judgment is final but it may be subject to editorial revision.



In the case of Ustinov and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 11 January 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further complaints under Article 6 of the Convention alleging various aspects of unfairness of the administrative-offence proceedings. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 1 February 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	51373/21 16/09/2021	**Daniil Vasilyevich USTINOV** 2002	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/03/2021		3,500
2.	51376/21 16/09/2021	**Mariya Viktorovna SONKINA** 1986	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/03/2021		3,500
3.	51381/21 16/09/2021	**Demid Antonovich RAKHMATULLIN** 1990	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 31/03/2021		3,500
4.	51384/21 16/09/2021	**Anton Yuryevich KURENOV** 1997	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/03/2021		3,500

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5.	52648/21 29/09/2021	**Vladislav Olegovich GLADKIKH** 1997	Kseniya Dmitriyevna Prosvirkina Moscow	Rally "Free Navalnyy" Ekaterinburg 23/01/2021	article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 31/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report.	4,000
6.	52658/21 04/10/2021	**Yekaterina Vladimirovna MASLOVSKAYA** 1959	Tatyana Georgiyevna Martynova Pskov	Rally "Free Navalnyy" Pskov 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Pskov Regional Court 05/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report.	4,000
7.	52659/21 04/10/2021	**Larisa Vladimirovna YEFIMOVA** 1963	Tatyana Georgiyevna Martynova Pskov	Rally "Free Navalnyy" Pskov 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Pskov Regional Court 05/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report.	4,000
8.	52660/21 04/10/2021	**Elvira Valentinovna NIKOGOSOVA** 1974	Tatyana Georgiyevna Martynova Pskov	Rally "Free Navalnyy" Pskov 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Pskov Regional Court 05/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report.	4,000
9.	52661/21 04/10/2021	**Pavel Vyacheslavovich VASILYEV** 2002	Tatyana Georgiyevna Martynova Pskov	Rally "Free Navalnyy" Pskov 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Pskov Regional Court 05/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report.	4,000

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10.	52665/21 12/10/2021	**Nikita Alekseyevich SVINCHUKOV** 2001	Marina Alekseyevna Dubrovina Novorossiysk	Rally "Free Navalnyy" Anapa 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 12/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report.	4,000
11.	52668/21 13/10/2021	**Anna Sergeyevna ALIKINA** 1996	Roman Yevgenyevich Kachanov Yekaterinburg	Rally "Free Navalnyy" Ekaterinburg 31/01/2021	article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 14/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
12.	52674/21 06/10/2021	**Anatoliy Petrovich IVAKIN** 1985	Aleksandr Vasilyevich Popkov Sochi	Rally "Free Navalnyy" Sochi 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Krasnodar Regional Court 14/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings .	3,500
13.	53302/21 05/08/2021	**Vladislav Valeryevich BELYAKOV** 1988	Aleksey Viktorovich Tsvetkov Vladimir	Rally "Free Navalnyy" Vladimir 21/04/2021	article 20.2 § 8 of CAO	detention of 20 days	Vladimir Regional Court 30/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 21/04/2021 until 22/04/2021.	5,000

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14.	53307/21 07/10/2021	**Yevgeniy Nikolayevich BOLSHAKOV** 1957	Olimpiada Valentinovna Usanova Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 07/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.30 p.m. on 31/01/2021 until 5.40 p.m. on 01/02/2021.	4,000
15.	53746/21 05/08/2021	**Anastasiya Yevgenyevna VASILYEVA** 1984	Aleksey Viktorovich Tsvetkov Vladimir	Rally to ensure access of doctors to detained Navalnyy Pokrov 06/04/2021	article 20.2.2 § 3 of CAO	fine of RUB 180,000	Vladimir Regional Court 17/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 06/04/2021 for compiling an offence report.	4,000
16.	53749/21 05/08/2021	**Aleksandr Borisovich GENERALOV** 1988	Aleksey Viktorovich Tsvetkov Vladimir	Rally to ensure access of doctors to detained Navalnyy Pokrov 06/04/2021	article 20.2.2 § 3 of CAO	detention of 8 days	Vladimir Regional Court 14/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 06/04/2021 until 07/04/2021; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
17.	53960/21 18/10/2021	**Kirill Sergeyevich RAZUMOV** 1995	Tatyana Georgiyevna Martynova Pskov	Rally "Free Navalnyy" Pskov 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Pskov Regional Court 12/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report.	4,000

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18.	54092/21 05/10/2021	**Valeriya Borisovna MERKULOVA** 1996	Aleksey Viktorovich Tsvetkov Vladimir	Rally to ensure access of doctors to detained Navalnyy Pokrov 06/04/2021	article 20.2.2 § 3 of CAO	detention of 8 days	Vladimir Regional Court 14/04/2010	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 06/04/2021 until 07/04/2021.	5,000
19.	54096/21 05/10/2021	**Artem Alekseyevich BORISKIN** 1997	Aleksey Viktorovich Tsvetkov Vladimir	Rally to ensure access of doctors to detained Navalnyy Pokrov 06/04/2021	article 20.2.2 § 3 of CAO	detention of 8 days	Vladimir Regional Court 14/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 06/04/2021 until 07/04/2021.	5,000
20.	54141/21 29/10/2021	**Aleksandr Vladimirovich MYACHKOV** 2021	Yelena Yuryevna Pershakova Moscow	Rally "Free Navalnyy" Perm 31/01/2021	article 20.2 § 5 of CAO	20 hours of community work	Perm Regional Court 30/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.30 p.m. on 31/01/2021 until 12.30 a.m. on 02/02/2021.	4,000

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21.	54252/21 20/10/2021	**Anastasiya Valentinovna KUZNETSOVA** 2002	Andrey Olegovich Valenkov Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 21/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report.	4,000
22.	54257/21 13/10/2021	**Aleksey Sergeyevich STEPANOV** 2002	Konstantin Mikhaylovich Zinovyev Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 14/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceeding; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.25 p.m. on 31/01/2021 until 1.00 a.m. on 01/02/2021.	4,000
23.	54260/21 12/10/2021	**Mikhail Sergeyevich SERGEYEV** 1979	Marina Alekseyevna Dubrovina Novorossiysk	Rally "Free Navalnyy" Anapa 31/01/2021	article 20.2 § 2 of CAO	detention of 7 days	Krasnodar Regional Court 12/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
24.	54263/21 20/10/2021	**Timofey Nikolayevich KUNTSEVICH** 1995	Sergey Sergeyevich Kulikov Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 21/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 1.40 p.m. on 31/01/2021 until 11.30 p.m. on 31/01/2021.	4,000

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25.	54264/21 20/10/2021	**Alina Romanovna MULIK** 1998	Sergey Sergeyevich Kulikov Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 21/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report.	4,000
26.	54340/21 22/10/2021	**Aleksey Andreyevich POPOV** 1998	Aleksey Alekseyevich Vasilyev Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 22/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 8.50 p.m. on 23/01/2021 until 4.30 a.m. on 24/01/2021.	4,000
27.	54433/21 20/10/2021	**Aleksandr Vitalyevich KIRILLOVICH** 1989	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 16/06/2021		3,500
28.	54541/21 13/10/2021	**Vyacheslav Vladimirovich CHISTOSERDOV** 1975	Aleksandr Vasilyevich Popkov Sochi	Rally "Free Navalnyy" Sochi 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Krasnodar Regional Court 19/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report.	4,000
29.	54548/21 14/10/2021	**Yuriy Nikolayevich KOBTSEV** 1977	Aleksandr Vasilyevich Popkov Sochi	Rally "Free Navalnyy" Sochi 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Krasnodar Regional Court 21/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report.	4,000

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30.	54787/21 14/10/2021	**Angelina Arkadyevna KRASYUK** 1991	Marina Alekseyevna Dubrovina Novorossiysk	Rally "Free Navalnyy" Anapa 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Krasnodar Regional Court 14/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report.	4,000
31.	54793/21 10/10/2021	**Anzhelika Konstantinovna ZAVATSKAYA** 1999	Nikita Nikolayevich Tkachenko Belgorod	Rally "Free Navalnyy" Belgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Belgorod Regional Court 24/05/2021		3,500
32.	55315/21 20/10/2021	**Nikita Mikhaylovich KOROBOV** 1989	Konstantin Mikhaylovich Zinovyev Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 21/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 31/01/2021 until 01/02/2021.	4,000
33.	55406/21 21/10/2021	**Kirill Andreyevich KARAKIN** 1998	Olimpiada Valentinovna Usanova Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 21/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 23/01/2021 until 24/01/2021.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
34.	58468/21 13/11/2021	**Nadezhda Alekseyevna TIKHONOVA** 1952	Roman Yevgenyevich Kachanov Yekaterinburg	Rally "Free Navalnyy" Ekaterinburg 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 03/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
35.	58503/21 26/11/2021	**Maksim Konstantinovich ASTAFYEV** 1976	Mariya Olegovna Eysmont Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention of 7 days	Moscow City Court 03/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 31/01/2021 until 01/02/2021.	5,000
36.	58545/21 18/11/2021	**Viktoriya Sergeyevna PIKALKOVA** 1997	Mariya Olegovna Eysmont Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 19/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 31/01/2021 until 01/02/2021.	4,000

[1] Plus any tax that may be chargeable to the applicants.